

C.C.R.B CASE CLOSING FORM

Investigator assigned: Motte		Team: 4	CCRB#: 9802869	☒ Force ☒ Discourtesy ☐ Abuse ☐ O.L. ☒ Injury
Date of incident: 6/9/98	Time of incident: 3:00 PM	Location of incident: Avenue I and Nostrand Ave.	Pct. of occurrence: 70th	Date S.O.L. Expires: 12/9/99
Date reported: 6/25/98	Time reported: 7:45 PM	To whom/where/how reported: Complaint made to Internal Affairs, then referred to CCRB.		
Complainant: § 87(2)(b)		Home address: § 87(2)(b)		
Victim(s): § 87(2)(b)		Home address: § 87(2)(b)		
Witness(es):		Home address:		
Subject officer(s) (include rank): PO Ruel Stephenson PO Iris Perez		Shield: 2363 11260	Tax: 916748 916422	Command: 70th 70th
Witness officer(s) (include rank): PO Grant Larose Sgt. Steven Ortiz PO Kenneth Zepherin		Shield: 8264 3511 30972	Tax: 906611 902895 905332	Command: 70th 70th 70th
Allegation(s) by letter: A. PO Perez used discourteous language towards § 87(2)(b) by stating "shut the fuck up" in violation of Patrol Guide procedure 104-01. B. PO Stephenson used excessive force when he pushed § 87(2)(b) to the ground in violation of Patrol Guide procedure 104-01. C. PO Stephenson used excessive force when he pushed § 87(2)(b) against the wall in violation of Patrol Guide procedure 104-01. D. PO Stephenson used excessive force when he grabbed § 87(2)(b) by the neck in violation of Patrol Guide procedure 104-01. E. An unidentified officer abused his authority when he searched § 87(2)(b) in violation of Patrol Guide procedure 110-01. F. An unidentified police officer was discourteous towards § 87(2)(b) at the stationhouse when he told him to "shut the fuck up" in violation of Patrol Guide procedure 104-01.				Recommendation(s): § 87(2)(g)

Synopsis

This case involves allegations of excessive force employed by PO Stephenson, and the use of discourteous language by PO Perez and an unidentified officer towards § 87(2)(b). There is also an allegation that an unidentified officer abused his authority. § 87(2)(g)

§ 87(2)(g)

Summary of Complaint

On June 9, 1998 at approximately 3:00 p.m., § 87(2)(b) along with § 87(2)(b) § 87(2)(b) "acquaintances", went to a store near Avenue K, where § 87(2)(b) bought a soda § 87(2)(b) remained outside. § 87(2)(b) wanted § 87(2)(b) to buy a soda for them but he only had money for himself. When they came outside, § 87(2)(b) was the only one with a soda. They then went to a pizza shop on Avenue K. § 87(2)(b) went inside while § 87(2)(b) remained outside. After the pizza was ordered, § 87(2)(b) went outside and observed § 87(2)(b) on the ground. At this time, there were four officers on the scene. One of the officers (PO #1 a male, black, with a baldhead) told § 87(2)(b) to "spread 'em." PO #1 then pushed him against the wall, causing him to hit his chin. When § 87(2)(b) asked the officers what had he done, the female officer told him to "shut the fuck up and turn around." PO #1 patted him down then pushed him to the ground by his shoulder, causing § 87(2)(b) to land on his right knee. § 87(2)(b) was handcuffed, then searched but he did not know which officer handcuffed or searched him. § 87(2)(b) and his "acquaintances" were then told to get up. An officer then took them one by one to the middle of the street, turned them around, and brought them back. (§ 87(2)(b) did not know why this occurred.) PO #1 then told them to get back on the ground.

PO #1 then tightly grabbed § 87(2)(b) by the back of his neck with his right hand, while simultaneously using his left hand to grab the handcuffs to pull § 87(2)(b) off the ground. At this time, PO #1's thumb scraped across the back of § 87(2)(b) neck causing an injury. § 87(2)(b) along with four of his "acquaintances" were placed in the patrol cars and taken to the precinct. § 87(2)(b) was released at the scene.

In the stationhouse, the handcuff was removed from § 87(2)(b) left hand. § 87(2)(b) was then handcuffed to a pole that was attached to the wall. When he asked to use the bathroom, an unidentified police officer told him to "shut the fuck up." § 87(2)(b) was later released to his parents. § 87(2)(b) denied being involved in any type of criminal activity.

§ 87(2)(b) and his mother, § 87(2)(b) did not realize the seriousness or extent of § 87(2)(b) injuries. § 87(2)(b) attempted to alleviate the soreness in § 87(2)(b)'s leg by having him take aspirins and soaking in the tub. It wasn't until § 87(2)(b) found the pain unbearable that § 87(2)(b) decided to take him to the hospital. § 87(2)(b) went to the hospital on § 87(2)(b) later.

Results of Investigation

Initially, the Internal Affairs Bureau had the date of occurrence as 6/13/98. However, the date of issuance on the Desk Appearance Ticket is 6/9/98. Furthermore, § 87(2)(b) and his mother, § 87(2)(b) stated that the incident occurred on 6/9/98.

§ 87(2)(b) "acquaintances" were identified as § 87(2)(b) § 87(2)(b) last names unknown, all of whom are juveniles.

Based upon the radio run, there was a 911 call of a commercial robbery in progress at Nostrand Avenue and Avenue K, possibly at gunpoint. A description was given for one of the suspects. § 87(2)(b) and the other juveniles were apprehended at 2362 Nostrand Avenue. Sectors C, G, and sp88 responded to the call. The officers were identified as PO Larose, Sgt. Ortiz, PO Zepherin, PO Perez, and PO Stephenson. PO Stephenson was identified as PO #1 based upon the radio run, the description given by § 87(2)(b) and the statements given by § 87(2)(b) and PO Stephenson. The complainant from the alleged robbery was brought to the location. The complainant positively identified § 87(2)(b) and the other juveniles as the assailants. § 87(2)(b) denied any involvement with a robbery or criminal activity.

§ 87(2)(b) stated that the last time they went to court was on September 2, 1998. All of the juveniles were told to go home, because there was insufficient evidence.

This investigator attempted to contact the other juveniles, who were the victims/witnesses to this incident. However, the attempts were met with negative results. § 87(2)(b) missed an appointment on 11/6/98. § 87(2)(b) missed an appointment on 11/19/98. § 87(2)(b) mother, § 87(2)(b) scheduled another appointment for him on 1/11/99. However, according to § 87(2)(b) he refused to be interviewed because the other youths decided not to cooperate with the investigation. § 87(2)(b) also had a second appointment scheduled for 1/11/99 but did not keep the appointment. This investigator attempted to contact § 87(2)(b) on 1/14/99, 1/22/99, and 1/25/99 to schedule a third appointment, but was unsuccessful. There was no contact information available for the other juveniles.

§ 87(2)(b) medical records were subpoenaed from § 87(2)(b) went to the emergency room at § 87(2)(b). He informed the emergency room attendant that he was "roughed up" by the police on 6/9/98. He further indicated that his body had been aching § 87(2)(b) he had pain to his right knee, and a headache. The records indicated that § 87(2)(b) had swelling and tenderness to his chin. The swelling was measured at 2 x 2 x 1 cm, positive erythema (see page 6 of closing report), but no break in the skin. There was a 3 cm scratch across the midline of § 87(2)(b) neck. There was a scab but no active bleeding. § 87(2)(b) right upper extremity was tender over distal (see page 6 of closing report) 1/3 of forearm. The records indicated that § 87(2)(b) "tibia tuberosity" (shin bone) was crushed (see Encl. 20B, C, and I) § 87(2)(b) was told to elevate the leg, use cold compresses, to avoid basketball for two weeks and to return to the emergency room if there were any problems. He was given Tylenol and Motrin for the pain.

§ 87(2)(b) also went to see a private physician, § 87(2)(b) indicated to the doctor that he had an altercation with the police on 6/9/98. The majority of the medical records were illegible; however, the following information was decipherable. On § 87(2)(b) § 87(2)(b) sustained soft tissue abrasion, contusion, and a fractured tibia (see page 6 of the closing report). On § 87(2)(b) continued to have pains in his leg and difficulty bending his leg. He was referred to § 87(2)(b) for x-ray and flexible casting.

Subject, PO Stephenson stated that they received a call that five "kids" had just robbed a store. He spotted them approximately two blocks away from the location. PO Stephenson and PO Larose was the first unit on the scene. A backup unit arrived seconds later. One of these officers', PO Stephenson could not recall who, told one of the juveniles to turn around on numerous occasions but the juvenile would not cooperate. The juvenile eventually cooperated on his own volition. No one pushed him or used any physical force against him. The juveniles were against the wall waiting for an "on the scene line up" to be conducted. The juveniles were positively identified and transported to the stationhouse. PO Stephenson stated that the juveniles were never on the ground. Furthermore,

PO Stephenson denied all of the allegations made by § 87(2)(b)

Witness officer, PO Larose stated that he and his partner, PO Stephenson received a radio call of a robbery. When they arrived at the location, a Korean/Vietnamese woman told them that five juveniles tried to take money from her cash register, and pushed her. The juveniles took soda, pretzels, and chips. The woman gave a description of the juveniles. Based upon the description, PO Larose and PO Stephenson spotted and stopped the juveniles at Nostrand Avenue and Avenue I. The juveniles were placed against the wall and held there until the storeowner was brought to the location to identify them. Three other sectors from the 70th precinct responded to the scene but PO Larose did not know who those officers were. One of these sectors brought the storeowner to the scene. PO Stephenson took each of the juveniles around the corner for a show-up. Once a positive identification was made, the juveniles were placed under arrest. They were frisked and searched prior to being placed in the patrol car. He could not recall who searched them. The juveniles were then transported to the stationhouse. The three youngest males were placed in the juvenile room where PO Larose kept watch over them. There were two other officers in the room but PO Larose could not recall who they were.

Witness officer, Anticrime Supervisor Sergeant Ortiz stated that when he and his team responded to the scene, there were four perpetrators standing, facing the wall. He directed two of his officers to bring the complainant (storeowner) to the scene to conduct a show-up, while he remained on the scene. When the complainant was brought to the location, each of the perpetrators was taken to the corner to be identified. Sgt. Ortiz was the "lookout," meaning he stood to the rear of the perpetrators and the other officers, keeping a watch over what transpired. After a positive identification was made, the juveniles were placed under arrest and transported to the stationhouse. Sgt. Ortiz and his team resumed patrol. Sgt. Ortiz stated that the juveniles were never on the ground.

Witness, PO Zepherin stated that when he and PO Perez responded to the scene, the perpetrators were facing the wall with their hands on the wall. The juveniles were not on the ground. The anti-crime sergeant responded to the scene. The anticrime police officers later brought the complainant to the location. A show-up was conducted. Each of the perpetrators was positively identified. PO Zepherin and his partner transported two of the perpetrators to the stationhouse, then escorted them to the desk. The officers then resumed patrol.

Subject, PO Perez stated that she and PO Zepherin responded to the scene as backup for Sector G. When they arrived on the scene, there were five perpetrators standing facing the wall. The responding sergeant instructed them to put the perpetrators on their knees. The complainant was brought to the location and a positive identification was made. Once the juveniles were identified, the sergeant told them to transport two of the perpetrators to the stationhouse. PO Perez and PO Zepherin escorted the two perpetrators to the desk, logged them into the cell, and ended their tour. PO Perez believed she handcuffed one of the perpetrators but she could not recall which one. The perpetrators were searched but she could not recall by whom. PO Perez denied all of the allegations.

Conclusions and Recommendations

§ 87(2)(g)



§ 87(2)(g)

§ 87(2)(b)

indicated that when they were stopped by the police, the female officer told him to “shut the fuck up and turn around.” PO Perez, who was the only female police officer on the scene, is the subject of this allegation.

§ 87(2)(g)

§ 87(2)(b)

further alleged that he was pushed against the wall, pushed on the ground, and grabbed by the neck by PO #1. § 87(2)(b) described PO #1 as a male, black, 6’1”, bald, slim with some muscles, and a very dark complexion. According to the radio run, sector G stopped four male blacks. Police Officers Larose and Stephenson were assigned to sector G. § 87(2)(g)

§ 87(2)(g)

In regards to allegation E, the subject officer is unidentified. None of the officers on the scene knew which one of the juveniles they handled. Furthermore, § 87(2)(b) was not sure which officer searched him. § 87(2)(g)

§ 87(2)(g)

The subject officer for allegation F could not be identified. PO Larose acknowledged being in the room with § 87(2)(b) along with two other police officers, but he could not recall who those police officers’ were. The roll call does not indicate who would be assigned to the juvenile room. § 87(2)(g)

§ 87(2)(g)

****Erythema is inflammation of the skin or mucous membranes. It is the result of widening and clogging of capillaries near the skin surface. (The Signet/Mosby Medical Encyclopedia, 1987)**

****Distal means away from or being the farthest from a point of origin, such a central point of the body. For example, the distal phalanx is the bone at the tip of the finger. (In ^{s 87(2)(b)} case, it would be the middle of his forearm.) (The Signet/Mosby Medical Encyclopedia, 1987)**

****Tibia is the second longest bone of the skeleton. It is located in the middle of the lower leg. Also called the shin bone. (The Signet/Mosby Medical Encyclopedia, 1987)**

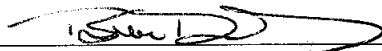
Investigator:



Date:

2/10/99

Supervisor:



Date:

2/10/99

Reviewed by:



Date:

2/10/99

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